

23. 9:01 AM CASE NUMBER: C24-02352
CASE NAME: DANIEL GOMEZ VS. JEREMY TEMAN
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL
INTERROGATORIES
FILED BY: U-HAUL CO. OF CALIFORNIA
TENTATIVE RULING:

Continued by stipulation of the parties.

24. 9:01 AM CASE NUMBER: C25-01788
CASE NAME: JOSEPH MURPHY VS. LIBERTY UNION HIGH SCHOOL DISTRICT
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR
PRODUCTION OF DOCUMENTS
FILED BY: MURPHY, JOSEPH
TENTATIVE RULING:

Plaintiff's Motion to Compel Verified Responses and Verified Further Responses to Request for Production of Documents, Set 1, Nos.20, 21, 26-41 and 46 is hereby granted, without further objection with verified responses to be served within 20 days from the date of this Order. The requests are limited to sexual contacts by employees, not their entire personnel files and concern for other students' privacy rights can have identifying information redacted.

Courtroom Clerk's Session
Add On

25. 9:00 AM CASE NUMBER: C25-02746
CASE NAME: CARTER HALLOCK VS. WENDY JARDINE
*CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

SEE LINE 26.

Law & Motion
Add On

26. 9:00 AM CASE NUMBER: C25-02746

CASE NAME: CARTER HALLOCK VS. WENDY JARDINE

*HEARING ON MOTION IN RE: STRIKE PLAINTIFFS' COMPLAINT CCP 425.16

FILED BY: Wendy JARDINE

TENTATIVE RULING:

Defendant Wendy Chapin Jardine ("Defendant") brings this special motion to strike the complaint (the "Complaint") of Plaintiff Carter Chapin Hallock ("Plaintiff"). The motion is brought pursuant to Code of Civil Procedure section 425.16, California's Anti-SLAPP Statute.

For the reasons discussed below Defendant's special motion to strike is GRANTED as to Plaintiff's claim for perjury.

Legal Standard for Special Motion to Strike

In *Baral v. Schnitt* (2016) 1 Cal.5th 376, the California Supreme Court explained the two-step approach courts take in ruling on an anti-SLAPP motion:

First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [citation] If the defendant makes the required showing, then burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. (*Id.* at p. 384.)

"[T]he only thing the defendant needs to establish to invoke the [potential] protection of the SLAPP statute is that the challenged lawsuit arose from an act on the part of the defendant in furtherance of her right of petition or free speech." (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61 quoting *Fox Searchlight Pictures, Inc. v. Paladino* (2001) 89 Cal.App.4th 294, 307.) To do so, the defendant must show that the "conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e)" of section 425.16. (*Id.* at p. 66.)

Subdivision (e) of section 425.16 states, in pertinent part:

[An] 'act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue' includes: (1) any written or oral statement or writing made before a ... judicial proceeding, or any other official proceeding authorized by law..." (Code Civ. Proc., § 425.16 subd. (e).)

If the statements or actions at issue were made before or in connection with a judicial proceeding, there is no separate requirement that the statements or actions be made in connection with a 'public issue.' (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1118.)

Background: Facts Alleged in Complaint

Plaintiff, who is Defendant's son, alleges that Defendant hired him in 2017 as a part time employee to work for CMOUTS LLC, which is a company Defendant is a majority owner of. (Complaint, p. 2, ¶ 1, Attachment D.) In 2019, Plaintiff was promoted to a full-time employee and in 2020 Plaintiff was granted access to the bank accounts of CMOUTS. (Complaint, p. 2, ¶ 1.) Plaintiff alleges that he and Defendant "reached an oral, written, and implied agreement for consideration of 49% of CMOUTS LLC." (*Ibid.*) Plaintiff created an \$80,000 line of credit for CMOUTS LLC, that only he had access to. (*Id.* at p. 2, ¶ 3.)

On June 27, 2025, Defendant testified at a restraining order hearing that "the petitioner is a single member LLC," and that "on or about 3/16/2025, \$60,000.00 was deposited into the respondent's personal account..." (Complaint, p. 2, ¶¶ 4-6.) The civil case was related to a restraining order filed by the Sonoma County Sheriff's Office in relation to a carjacking Defendant was arrested for that involved Plaintiff and a 2023 Lexus vehicle for which ownership is currently at issue. (*Id.* at ¶ 9.)

The Complaint, filed on September 30, 2025, and served on Defendant on January 4, 2026, asserts claims against Defendant for: (1) perjury; (2) filing a false police report; and (3) replevin. (Complaint, pp. 1-5.) The perjury claim accuses Defendant of violating Penal Code section 148.5(a). (*Id.* at ¶¶ 14-16.) The perjury is based on Defendant's testimony at the restraining order hearing that (a) CMOUTS LLC is a single member LLC and (b) that \$60,000 was deposited into Plaintiff's personal account. The false police report claim is based on Defendant allegedly filing false felony charges of carjacking against Plaintiff. (*Id.* at ¶¶ 3, 6, 15.) The replevin claim is based on Plaintiff's desire for the Court to order the "immediate return of 2023 Lexus to Plaintiff's Contra Costa County Sheriffs to it can be retrieved by Plaintiff." (*Id.* at ¶¶ 6, 8, 9, 12, 15, 22.) Although the body of the Complaint does not clearly delineate the claims, the caption of the Complaint identifies them, as does the prayer for relief and the body of the Complaint.

All of Plaintiff's claims are somewhat related to the 2023 Lexus vehicle as there is a dispute between Plaintiff and Defendant as to who actually owns it, as the ownership of the vehicle is at issue due to it being in Plaintiff's name but in the possession of Defendant, which is related to a falling out over CMOUTS LLC. (Complaint, ¶ 6, Attachment D.) Apparently, on May 31, 2025, according to a police report attached to the Complaint, Plaintiff, the son of Defendant, entered into the residence of Defendant without permission and attempted to grab the purse from his mother's hands. (*Id.* at Attachment D.) Plaintiff struggled with Defendant and took the purse, causing Defendant to fall backwards on the floor and sustain an injury to her arm. Plaintiff took the keys to the Lexus from Defendant's purse and left. (*Ibid.*) Plaintiff was subsequently arrested for robbery, burglary, and for causing injury to an elder. (*Ibid.*) The charges were eventually dropped prior to a plea being entered. (*Id.* at ¶ 8.)

On February 3, 2026, Defendant filed the instant special motion to strike.

Discussion

Defendant argues that Plaintiff's Complaint rests entirely on allegations of Defendant's public participation, which means the statements attributed to Defendant constitute protected activity for purposes of California anti-SLAPP statute. (Motion to Strike, p. 4.) This is because the entire lawsuit is

based on an oral statement made in Court by Defendant and statements made in judicial proceedings are protected speech for anti-SLAPP purposes. (*Id.* at p. 5.)

Plaintiff argues that Defendant's notice of motion, special motion to strike, proposed order, and the declaration of Constantine Panagotacos are objectionable and should be stricken from the record. (Opposition, pp. 1-2.) Plaintiff argues that while lying in casual conversation is often protected, lying under oath in court is not. (*Id.* at p. 1.) Attachment A to Plaintiff's complaint shows that the LLC has two members, not one. (*Id.* at p. 2.) Plaintiff also asserts that encouraging a client to commit perjury is a disciplinary offense and that the proposed order contains false statements. (*Id.* at p. 2.) Plaintiff argues that *United States v Alvarez* stands for the proposition that the government cannot punish lies simply because they are false, but that false statements are not protected when they fall into categories like perjury or making false statements to authorities. (*Id.* at p. 3.)

On reply, Defendant argues that Plaintiff does not address the arguments in the anti-SLAPP motion but rather attacks "the counsel of Defendant's attorney." (Reply, p. 1.) Defendant asserts that the relevant arguments were already addressed in Defendant's moving papers and need not be repeated. (*Ibid.*)

Protected Activity

Protected activity covered by section 425.16 includes a "statement or writing made before a ... judicial proceeding." (Code Civ. Proc., § 425.16(e).) It also includes "any written or oral statement made in connection with an issue under consideration or review by a ... judicial body." (*Ibid.*) A "statement is 'in connection with' litigation under section 425.16, subdivision (e)(2) if it relates to the substantive issues in the litigation and is directed to persons having some interest in the litigation." (*Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1266.) This also includes "qualifying acts committed by attorneys in representing clients in litigation." (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1056.)

"The anti-SLAPP statute's definitional focus is not the form of the plaintiff's causes of action but, rather, the defendant's *activity* that gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning." (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92.) The statute does not "require that a defendant moving to strike under section 425.16 demonstrate that its protected statements or writing were made *on its own behalf* (rather than, for example, on behalf of its clients or the general public.)" (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1116.)

Here, the allegations in the Complaint relating to Plaintiff's perjury claim are based on statements made in a restraining order hearing in Sonoma County, case number 2503725, which is a judicial proceeding and is protected activity under Section 415.16(e)(1) of the Code of Civil Procedure. As such, Defendant has met her burden to "establish that the challenged claim arises from activity protected by section 425.16." (*Baral, supra*, 1 Cal.5th at 384.) As the activity related to statements made in a judicial proceeding, there is no need to show that it was also made in connection with a 'public issue.' (*Briggs*, 19 Cal.4th at 1118.)

With respect to Plaintiff's claim of filing a false police report, the burden is on Defendant to show that this claim arises from protected activity, but the Motion is silent on this issue. Thus, there will be no further analysis of whether Plaintiff's claim of filing a false police report is subject to Defendant's

Motion.

With respect to Plaintiff's replevin claim, the burden is on Defendant to show that this claim arises from protected activity, but the Motion is silent on this issue. Thus, there will be no further analysis of whether Plaintiff's replevin claim is subject to Defendant's Motion.

Probability of Success

As Defendant met her initial burden, the burden shifts to Plaintiff to "demonstrate the merit of the claim by establishing a probability of success." (*Baral, supra*, 1 Cal.5th at p. 384.) "To show a probability of prevailing for purposes of section 425.16, a plaintiff must 'make a prima facie showing of facts which would, if proved at trial, support a judgment in plaintiff's favor.'" (*ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1010, internal quotation marks omitted.)

To do this, "a plaintiff seeking to demonstrate the merit of the claim 'may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence.'" (*Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 941 ("*Sweetwater*") quoting *San Diegans for Open Government v. San Diego State University Research Foundation* (2017) 13 Cal.App.5th 76, 95.)

The anti-SLAPP statute describes what evidence a court may consider at the second step. "It provides that '[i]n making its determination, the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.'" (CCP §425.16(b)(2).) In lieu of an affidavit, declarations are allowed. (*Sweetwater, supra*, 6 Cal.5th at 941.)

Here, Plaintiff does not provide any affidavits or declarations in support but rather offers argument in relation to attachments to his complaint. (Opposition, pp. 1-3.) He argues that attachment A to his Complaint shows that CMOUTS LLC is not a one-member LLC but a two-member LLC. (*Id.* at p. 2.) The Court finds this document insufficient to show that CMOUTS LLC is a two member LLC. Plaintiff has not signed it and the portion where his name is identified states "Member or Manager," which makes it ambiguous. Further, it is an incomplete document as only page 2 of 2 is provided. Plaintiff also cites Exhibit H, which appears to reference his MEMORANDUM OF POINTS AND AUTHORITIES TO SUPPORT COMPLAINT: PERJURY, (PC 118), FILING A FALSE REPORT REPORT WITH A PEACE OFFICER (148.5), & REPLEVIN (CCP 512.020) PER EVID 622, EVID 210, 31 CFR 1010.230, CORP 17704.10 & CORP 17701.13 document, filed on the same day of the Opposition. Exhibit H purports to show Defendant "lying under oath in a cross-complaint. . ." which is outside the scope of the perjury claim Plaintiff asserts in the Complaint.

However, as Defendant points out in the Motion, there is no private right of action for perjury. (Motion, p. 5; citing *Pollock v. University of Southern California* (2003) 112 Cal.App.4th 1416, 1429 ["There is no civil cause of action for 'perjury.' [Citations.] Perjury is a criminal wrong."].) Plaintiff's documentation does not defeat this.

Further, as Defendant argues, Plaintiff's claim for perjury is barred by the litigation privilege codified at Civil Code section 47. Civil Code section 47(b) sets for the so-called 'litigation privilege,' which broadly protects communications made during judicial proceedings. It defines a "privileged publication" to include one made in any "judicial proceeding." That section "has been given broad application," and is now "held applicable to any communication, whether or not it amounts to a publication [citations] and all torts except malicious prosecution." (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 211-12.) It applies to "any publication required or permitted by law in the course of a judicial proceeding to achieve the objects of the litigation, even though the publication is made outside the courtroom and no function of the court or its officers is involved." (*Id.* at p. 212.)

The publication "need not be pertinent, relevant, or material in a technical sense to any issue in the action; it need only have some connection or relation to the proceedings." (*Portman v. George McDonald Law Corp.* (1979) 99 Cal.App.3d 988, 991.) The privilege applies even where the testimony "is allegedly perjured and malicious." (*Id.* at 990.) "The resulting lack of any really effective civil remedy against perjurers is simply part of the price that is paid for witnesses who are free from intimidation by the possibility of civil liability for what they say." (*Ibid.*)

"The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action." (*Silberg, supra*, 50 Cal.3d at 212.) Here, Defendant's alleged testimony at the restraining order hearing relating to how many members CMOUTS LLC has, who owns the Lexus, or what account certain money was deposited in, are all statements made in a judicial proceeding and are thus privileged under the litigation privilege and unable to support a claim by Plaintiff against Defendant. Defendant has not met his burden of demonstrating the merit of his perjury claim by establishing a probability of success. The Court will GRANT Defendant's special motion to strike as to the perjury cause of action.

Attorney Fees

A "prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." (Code Civ. Proc. § 425.16(c).) The award of attorney fees is "mandatory." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) The Court finds that Defendant is the prevailing party on this anti-SLAPP motion, and thus she is entitled to attorney fees.

As noted by Defendant, she will file a separate noticed motion for fees and costs. The Court will address the propriety of the amount of fees at that time.

Ruling

Based on the above, Defendant's Special Motion to Strike is **GRANTED** as to Plaintiff's Perjury Cause of Action.